TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MAY 18, 2026
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Giles Branch, Megan Stevens, Brian Stress, Cheryll Woods-Flowers, Joan Spier.
Absent: Elliott Barrow.
Staff: Matt Simms, Michael Robertson, David Pagliarini, Lynnette Lynes
Also: Tim Domin, attorney for the Board

Mr. Wood called the meeting to order at 6:01 pm.

A. Approval of Agenda

Ms. Woods-Flowers moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Stress moved for approval of the minutes. Ms. Spier seconded the motion. All in favor.

C. Public Comment

There being no comments, Mr. Wood continued with the agenda.

D. General Correspondence

1. **Case V-15-22, 805/807 Simmons Street, TMS# 532-05-00-135,** Request for an extension of the vested rights period in accordance with Chapter 151.

Ms. Woods-Flowers moved for approval of the vested rights extension. Mr. Branch seconded the motion. All in favor.

E. Executive Session for the Purpose of Receiving Legal Advice Related to Case V-09-26, 524 Whilden Street, TMS# 532-01-00-115

Ms. Spier moved to convene into executive session for legal advice. Mr. Branch seconded the motion. All in favor.

The Board convened into executive session at 6:03 pm.

F. Post Executive Session--Board may take action on any item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

The Board reconvened at 6:23 pm. No action was taken while in executive session.

G. Explanation of Procedures
H. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

I. Business

1. Case V-09-26, 524 Whilden Street, TMS# 532-01-00-115, Request relief from the strict application of the standards in Table §156.039-1 R2 Dimensional Standards to allow an eight (8) foot front yard and a three (3) foot side yard for a new detached house. The ordinance requires a twenty (20) foot front yard and an eight (8) foot side yard.

Mr. Robertson reviewed staff comments with the Commission. He stated that a tree preservation plan has been submitted by the applicant.

Mr. Ross Appel, attorney for the applicant, reviewed the request with the Board. He stated that the applicant has restudied their plans several times in response to comments from the Board for previous requests. He stated that the property is a non-conforming lot due to the size of the lot. He reviewed how the request meets the criteria for approval of a variance with the Board.

Ms. Cynthia Nirenblatt, 516 Whilden St , stated that a self-created or self-inflicted conflict cannot be used as a hardship for a variance. She suggested that this request would cause additional stormwater runoff and flooding in the area. She suggested that subdividing the original lot into two smaller lots is a self-created hardship. She also suggested that proposed variance would endanger the protected tree. She also expressed concern that the additional imperious surface would exacerbate the flooding issue which could increase insurance costs for surrounding properties. She asked that the variance be denied.

- Ms. English Davidson, 404 Morrison, suggested that the original decision for this property should be upheld and the required setbacks adhered to. She expressed concern that the area floods including her property that is located behind the subject property. She suggested that although a drainage plan has been approved, she expressed concern that the drainage issues would still be exacerbated with development of this lot. She expressed frustration with not being able to alleviate the flooding of her property after trying numerous remedies.

- Ms. Maria Austin, 414 Morrison Street, suggested that a "reasonably sized home" is an arbitrary phrase. She suggested that a smaller home could be built on the lot that would not exacerbate issues and still be in character with the neighborhood.

- Ms. Ellen Nirenblatt, 516 Whilden St, expressed concern with the request to remove the laurel oak. Mr. Wood clarified that the tree is not being removed. She stated that she was not able to attend the previous meetings as she was out of the country. She suggested that tree preservation is an important aspect of the ecosystem. She suggested that tree removal should not be allowed in order to develop property. She asked that the request should not be approved as it will be detrimental to the character of the neighborhood and character.

- Ms. Liz Stanton, architect for the applicant, reviewed the size of home that could be built on the property if the setback standards were applied, which would be approximately 378 square feet per floor or a total of approximately 750 square feet. She stated that a 14 x24 foot home could be built, but would mean only a one-bedroom home.

- Mr. Appel rebutted that the applicant is not responsible for subdivision of the original lot and noted that the property has been platted since 1949, well before the Town ordinances were established. He suggested that moving the home forward on the property, provides more space for the home, preserves the tree, and suggested that it provides a smaller home that could be determined to address "middle housing" and possibly "affordable housing". He stated that the stormwater plan will help to alleviate flooding.

No rebuttal from staff.

- Mr. Wood asked about the size of the home that could be constructed and the discrepancy. Mr. Appel answered that he would defer to the architect's calculations as they are probably more accurate.

- Ms. Spier asked if parking is required. Mr. Robertson answered in the affirmative and stated that one parking space is required.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on the findings that there are extraordinary conditions as the lot was platted in 1949, years before the zoning code was established and is non-conforming under all zoning classifications; conditions do not apply to other surrounding property as it is a smaller lot and there is a large tree in middle of lot; because of these conditions, the utilization of the property would be unreasonably restricted and a reasonably sized house could not fit on this lot; and there is no substantial detriment to adjacent properties or public good as they are saving the tree, there is an approved drainage plan, and the home would be located toward the front of the lot farther away from the homes to the rear. Mr. Branch seconded the motion. All in favor.*

2. **Case V-11-26**, **747 Winthrop Street, TMS# 532-06-00-251,** Request relief from the strict application of §156.203(C)(2)(a) to allow a detached accessory structure exceeding 18 feet in height to maintain 6-foot side and rear setbacks. The ordinance requires 10-foot side and rear setbacks for any portion of a detached accessory structure exceeding 18 feet in height. Additionally, a request for relief from the strict application of §156.203(D)(3) to allow a Building Area Ratio (BAR) of approximately 61.3% for the same detached accessory structure. The ordinance restricts BAR to no more than 50% of the lot area. Correspondence

- Mr. Simms reviewed staff comments with the Board.

- Mr. Branch recused himself due to a conflict of interest.

- Mr. Benjamin Mack, representative for the applicant, reviewed the request with the Board. He stated that the plans were in progress prior to the changes in the ordinance that requires accessory structures in excess of 18 feet must meet a ten foot setback.

- Mr. Josh Lambert, owner, asked that the variance be granted.

- Mr. Wood made a point of order that Mr. Lambert is the owner and that the presentation time was given to the representative for the applicant and suggested that he should not be allowed to speak.

- Ms. Alys Campaigne, 1314 Wayne St, stated that as a former Planning Commission member she is very familiar with the Comprehensive Plan and development requirements throughout the Town. She stated that there has been significant development has occurred since she bought her home. She asked that it be denied.

- Mr. Wood stated that Mr. Lambert would be allowed to offer comments.

- Mr. Josh Lambert stated that his daughter is autistic with severe medical issues that means a full-time caregiver is needed and the reason for the request. He suggested that the medical issues are extraordinary conditions. He suggested that no trees will be removed and they are not parking on the street.

- Mr. Wood asked how the request meets the variance criteria. Mr. Lambert stated that he would defer to Mr. Mack. Mr. Mack answered that the configuration of the property is narrow and changes in the setbacks. Mr. Wood asked how this property differs from the other properties. Mr. Mack answered that surrounding properties have ADU that are larger, but because of the configuration of the property, it is difficult to maneuver and be able to construct the ADU. Mr. Wood suggested that this property is no different from neighboring properties. Mr. Mack stated that the application of the new setbacks causes the hardship.

- Ms. Stevens asked when the property was purchased. Mr. Lambert answered that they closed on the house in March 2026 and were not aware of the proposed ordinance changes when the property was purchased.

- Mr. Wood closed public comment.

- Mr. Wood suggested that there are no extraordinary conditions and is not unique from the surrounding properties and suggested that given this the request should not be granted.

- *Ms. Stevens moved for denial based on the findings that the property does not meet the criteria for a variance as stated by Mr. Wood there are no extraordinary or exceptional conditions, the conditions are not unique from the surrounding properties, and based on case law the need for medical support personnel does not meet the standard for a hardship. Ms. Spier seconded the motion. All in favor with Mr. Branch abstaining.*

3. **Case V-12-26, 835 Coleman Boulevard 100, TMS# 532-07-00-001,** Request for relief from the strict application of § 156.1038(A)(2) to allow approximately 50% of the ground floor street frontage to be devoted to office or residential use. The ordinance limits office or residential use to no more than 40% of the ground-floor street frontage.

- Mr. Simms reviewed staff comments with the Board.

- Mr. Leonard Way, 268 W. Coleman, reviewed the request with the Board. He stated that they have had difficulty in finding a retail business that can survive the market in that area. He stated that approximately 7% of the required retail cannot be accommodated.

- Mr. Wood asked how the existing office space is changing. Mr. Way answered that the change in use skews the percentages, causing the issue.

- Mr. Simms stated that the change of use changes the percentages and therefore puts them not in compliance with the ordinances.

- Ms. Spier asked if the portion of the previous retail (yellow highlighted portion) could be divided to meet the ordinance requirement. Mr. Way answered that they are having difficulty finding retail tenants for the space.

- Mr. Stress asked the square footage for the medical office. Mr. Way answered that it is approximately 3900 square feet. Mr. Stress asked if the tenant requires all of the square footage. Mr. Way answered in the affirmative.

- Mr. Wood asked how the request meets the variance criteria in regards to being unique to surrounding properties. Mr. Simms answered that he is not aware of the percentages of the surrounding commercial buildings.

- Mr. Wood closed public comment.

- *Mr. Wood moved for denial as the criteria to grant a variance has not been met. Ms. Spier seconded the motion. Motion passed on a 5 to 1 vote with Mr. Stress, Ms. Woods-Flowers, Mr. Branch, Ms. Spier, and Mr. Wood in favor; Ms. Stevens opposed.*

4. **Case V-13-26**, **123 Hibben Street, TMS# 532-01-00-004,** Request for relief from the strict application of the standards in Table §156.424-1 Setbacks and Height for Accessory Use and Structures, to allow approval of an as-built 5.56-foot side yard for an accessory structure. The ordinance requires a six (6.0) foot side yard.

- Mr. Simms reviewed staff comments with the Board.

- There being no applicant, Mr. Wood suggested the request be denied.

- *Mr. Wood moved for denial based on the findings that the applicant is not present and has not presented justification for their case. Mr. Branch seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 7:34 pm.

Submitted by,
L. Lynes
BOZA05182026